

Protection of Plant Varieties and Farmers Rights (Community Award from the Gene Fund) Rules, 2018

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Union of India - Act

Protection of Plant Varieties and Farmers Rights (Community Award from the Gene Fund) Rules, 2018

UNION OF INDIA

India

Protection of Plant Varieties and Farmers Rights (Community Award from the Gene Fund) Rules, 2018

Rule

PROTECTION-OF-PLANT-VARIETIES-AND-FARMERS-RIGHTS-COMMUNITY-AWARD-FROM-THE-GENE-FUND-RULES-2018 of 2018

Published on 24 April 2018

Commenced on 24 April 2018

[This is the version of this document from 24 April 2018.]

[Note: The original publication document is not available and this content could not be verified.]

Protection of Plant Varieties and Farmers Rights (Community Award from the Gene Fund) Rules, 2018

Published vide Notification No. G.S.R. 391(E), dated 24.4.2018

G.S.R. 391(E). - In exercise of powers conferred by sub-section (2) of section 45 of the Protection of Plant Varieties and Farmers' Rights Act, 2001 read with clause (vi) of sub-section (2) of section 96 of the Protection of Plant Varieties and Farmers' Rights Act, 2001, (53 of 2001) the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These Rules may be called the Protection of Plant Varieties and Farmers Rights (Community Award from the Gene Fund) Rules, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Community Award.

(1)

A community of farmers who are engaged in the conservation of genetic resources of land races and wild life relatives of economics plants and their improvement through selection and preservation shall be entitled to an award to be called "Plant Genome Saviour Community Award".

(2)

There shall be a maximum of five awards or less in a financial year.

(3)

The Award shall comprise of citation, memento and cash of rupees ten lakhs each.

3.

Community award to be conferred annually.

(1)

The Community award to the communities of farmers shall be conferred annually.

(2)

The details and application form for Community Award from the gene fund shall be widely published through newspapers and website of the Authority.

4.

Application form.

(1)

The application form for the Plant Genome Saviour Community Award shall be in accordance with Schedule-I annexed to these rules.

(2)

The application may be submitted either in English or Hindi.

(3)

The application form for the Award shall be submitted in triplicate.

(4)

No fees shall be charged from the farming community while applying for the Award.

(5)

The application shall be forwarded through Chairperson or Secretary of the concerned Panchayat, Biodiversity Management Committee or concerned District Agricultural Officer or Director of Research of concerned State Agricultural University or concerned District Tribal Development Office or Zonal Project Director, Indian Council of Agricultural Research with official seal.

5.

If the community of farmers selected for the Award is not a legal person then the Chairperson of the Authority may direct the community to register themselves as a legal person under any law, before the grant of the Award.

6.

Eligibility and awardees to be determined by the Committee.

(1)

The Committee shall determine the eligibility and select the awardees for Community Award from the Gene Fund.

(2)

The community of farmers particularly, the tribal, village, rural and farming communities to be eligible for community award, be engaged in the conservation of genetic resources of land races and wild relatives of economic plants and their improvement through selection and preservation and the material so selected has been used as donors of genes in varieties registerable under the Act.

(3)

The criteria for determining Community Award are as follow:-

(a)

The community of farmers awarded with Plant Genome Saviour Community Award shall not be eligible to apply again.

(b)

In any financial year, the award shall not be conferred to more than one community from the same State.

(c)

The community of farmers shortlisted for Community Award shall be required to deposit a specified quantity of seeds or propagating material with the Authority to be decided by it's Chairperson.

(d)

The Authority shall conduct a site inspection of the short-listed awardees for verification.

(4)

A Committee shall confirm the eligibility and select the awardees for Community Award from the Gene Fund.

(5)

The Committee shall comprise of:-

(a)

Persons of outstanding caliber and eminent scientist with long practical experience in the field of Plant Varietal Research or Agro Bio-diversity to be nominated by the Chairperson of the Authority.

-Chairman

(b)

Nominee of the Secretary, Department of Agriculture, Cooperation and Farmers Welfare.

-Member

(c)

Nominee of the Secretary, Ministry of Environment, Forests and Climate Change.

-Member

(d)

Nominee of the Secretary, Ministry of Panchayati Raj.

-Member

(e)

Nominee of the Secretary, Ministry of Rural Development.

-Member

(f)

Nominee of the Secretary, Department of Biotechnology.

-Member

(g)

Representative of the Director General, Indian Council of Agricultural Research.

-Member

(h)

Two Vice-Chancellors of State Agriculture Universities to be nominated on rotation basis by the Chairperson of the Authority.

-Member

(i)

Two Directors from Institutes of Indian Council

of Agricultural Research or Council of Scientific and Industrial Research or Indian Council of Forestry Research and Education to be nominated by the Chairperson of the Authority.

-Member

(j)

Director of Agriculture or Horticulture from any of the States to be nominated on rotation basis by the Chairperson of the Authority. (States represented in clause (h) and States represented in clause (j) shall be different)

-Member

(k)

Two farmers or two persons engaged in biodiversity related activities to be nominated by the Chairperson of the Authority out of which one shall be a woman.

-Member

(l)

One representative from a non-governmental organisation working in the Agro-Biodiversity conservation to be nominated by the Chairperson of the Authority.

-Member

(6)

The Registrar (Farmers' Rights), shall be the Secretary of the Committee.

(7)

The quorum of the Committee shall be five.

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Government of India Ministry of Agriculture and Farmers Welfare Protection of Plant Varieties and Farmers' Rights Authority S-2, 'A' Block, Nasc Complex, Dps Marg, Opp. Todapur New Delhi-110012

Application Form for the 'plant Genome Saviour Community Award'

For Community of farmers engaged in conservation of genetic resources of land races and wild Relatives of Economic Plants and their improvement through selection and Preservation and that the Material so Selected and Preserved has been used as Donors of Genes in Varieties Registerable Under Protection of Plant Varieties and Farmers' Rights Act, 2001.

(Use Capital Letters Only)

Year _ _ _ _ _

1.

Name of the Community of farmers

2.

Postal address (for correspondence) Block Village/Panchayat P.O. District State/ Union territory Pin Tel.

(if any) E mail (if any).

3.

Status of applicant (Registered or Unregistered) (If registered then give the details of registration number and year).

4.

Details of the area to which the community belongs?

5.

Location(s) of the conservation site.

6.

Plants/crops in which conservation or improvement efforts had been made. (Give list including common name of the varieties so conserved or improved upon).

7.

How many varieties (including land races and wild relatives of economic plants) had been conserved or improved upon?(give details plant/crop wise).

8.

How much area is being planted/ cultivated by the applicant with the conserved varieties?(give variety wise details)

9.

Whether any innovative methods, practices, storage techniques etc., are developed/ adopted?(give details).

10.

Give information (if available) about the varieties that were shared/exchanged with others for varietal development. In case, any variety has been shared please inform if any transfer agreement has been executed.

11.

What is the distinct character identified in the conserved variety/ varieties? (Give details on variety basis).

12.

Name of the organisation, if any that identified the useful character in the conserved varieties.

13.

Has the variety/varieties been entered in the Peoples' Biodiversity Register maintained by the Biodiversity Management Committee

YES/NO

14.

Whether the farming community rewarded/awarded or recognised for the conservation efforts by any other organisation? If yes, please give details.

15.

Name the agencies (Government or Non-Governmental Organisation) conversant with the claims made.

i. Government:

ii. Non-Governmental Organisation :

16.

In case the community has a bank account give details:-

Name of the Account:

Type of Account

(Savings/ Current):

Name of Bank and

Branch:

IFSC Code:

MICR Code:

PAN No:

17.

Give a brief outline of the proposed work plan for utilisation of the Award Money.(in 15-20 lines).

Note: 1. Please sign each page of the Application Form.

2. For details/information in any column, extra pages can be attached as Annexure.

3. Declaration and Certificate to be attached

4.

Declaration

I hereby declare that the information's given in the application are true to the best of my knowledge and belief.

Signature(Representative of the Farming Community)

Certificate

It is hereby certified that the community of farmers named in the application has conserved and improved the materials/ plant genetic resources mentioned in this application form and the said materials/ plant genetic resources have been used as donor of genes in varieties registerable under Protection of Plant Varieties and Farmers' Rights Act, 2001.

Signature(with date and seal)

(To be certified by Chairperson/Secretary of the Concerned Panchayat, Biodiversity Management Committee or Concerned District Agricultural Officer or Director of Research of concerned State Agricultural University or Concerned district Tribal Development Office or Zonal Project Director, India Council of Agricultural Research) with official seal.

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